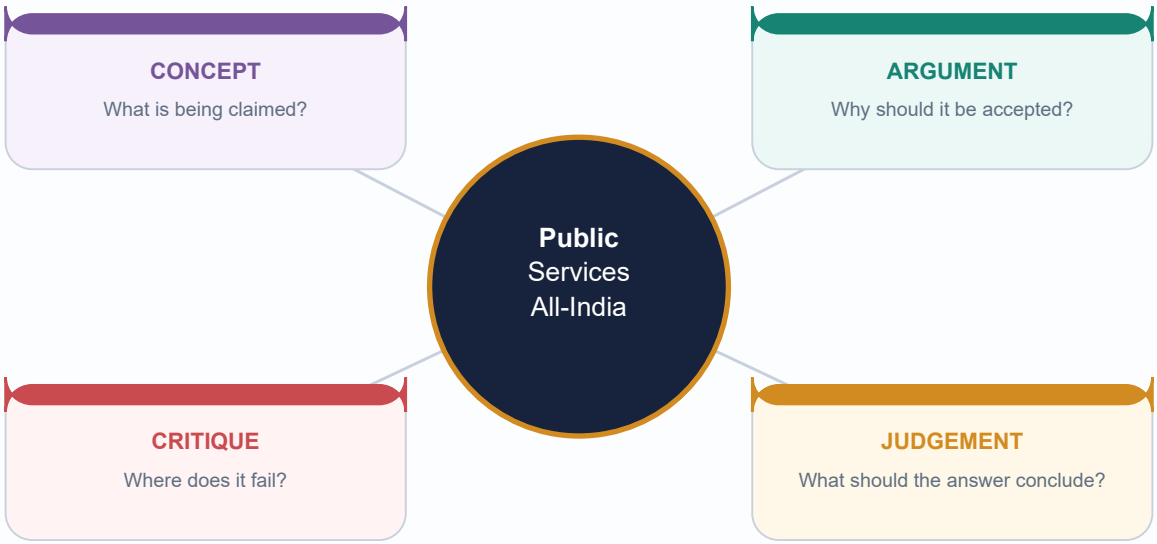
UPSC INDIAN POLITY

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains
Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth
Sources: Public-Services.md + 41_Public-Services.md
Learning cards: 34



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Basic (foundation) · **GS-II**

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ = from book · □ = current link · □ = mnemonic. *Advanced: optional deeper detail in advanced/41_Public-Services.md — not required for any mark.*

MEMORY HOOK

□ = from book · □ = current link · = mnemonic. *Advanced: optional deeper detail in advanced/41_Public-Services.md — not required for any mark.*

MUST-KNOW FACTS

1. = from book · □ = current link · □ = mnemonic. *Advanced: optional deeper detail in advanced/41_Public-Services.md — not required for any mark.*

MAINS ANGLE

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Article	Deals with
309	Recruitment & service conditions
310	**Doctrine of Pleasure**
311	**Safeguards** for civil servants
312	**All-India Services** (RS resolution, 2/3)
AIS	**IAS, IPS, IFoS** (Forest, since 1966)

MAINS ANGLE

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian Polity

INTRO & ORIGIN

India has **three tiers** of services — **All-India (IAS/IPS/IFoS), Central, and State**. AIS officers serve **both** Centre and states but are **recruited by the Centre**. Civil servants hold office at the **pleasure** of the President/Governor (**Art 310**), but **Art 311** protects them from arbitrary dismissal.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

V

Dimension 1 India has three tiers of services — All-India (IAS/IPS/IFoS), Central, and State. AIS officers serve both Centre and states but are recruited by the C	**Dimension 2** □ Art 312 = RAJYA SABHA resolution (2/3 present & voting) to create a new AIS — protects states.
Dimension 3 □ Art 311's two shields: (1) no dismissal by a subordinate authority; (2) inquiry + hearing required.	**Dimension 4** □ 3 exceptions to the inquiry: criminal conviction · not practicable · security of State.

STATIC THEORY

- □ **Art 312 = RAJYA SABHA** resolution (2/3 present & voting) to create a new AIS — protects **states**.
- □ **Art 311's two shields:** (1) no dismissal by a **subordinate** authority; (2) **inquiry + hearing** required.
- □ 3 exceptions to the inquiry: **criminal conviction · not practicable · security of State**.

MEMORY HOOK

Art 312 = RAJYA SABHA resolution (2/3 present & voting) to create a new AIS — protects states. | Art 311's two shields: (1) no dismissal by a subordinate authority; (2) inquiry + hearing required. | 3 exceptions to the inquiry: criminal conviction · not practicable · security of State.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Must-Know Facts

GS-II Indian Polity

INTRO & ORIGIN

□ **ICS→IAS, IP→IPS** in 1947; **IFoS** = third AIS (1966).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

V

Dimension 1 □ ICS→IAS, IP→IPS in 1947; IFoS = third AIS (1966).	**Dimension 2** □ All-India Services Act, 1951 governs the AIS; up to 33⅓% senior posts by state-service promotion.
Dimension 3 □ All-India Judicial Service (AIJS) — enabled by 42nd Amdt but never created; post ≥ District Judge.	**Dimension 4** □ 42nd Amdt (1976) removed the second-stage (punishment) hearing under Art 311.

STATIC THEORY

- □ **All-India Services Act, 1951** governs the AIS; up to **33⅓%** senior posts by state-service promotion.
- □ **All-India Judicial Service (AIJS)** — enabled by 42nd Amdt but **never created**; post ≥ District Judge.
- □ **42nd Amdt (1976)** removed the second-stage (punishment) hearing under Art 311.

MUST-KNOW FACTS

1. **ICS→IAS, IP→IPS** in 1947; **IFoS** = third AIS (1966).
2. **All-India Services Act, 1951** governs the AIS; up to **33⅓%** senior posts by state-service promotion.
3. **All-India Judicial Service (AIJS)** — enabled by 42nd Amdt but **never created**; post ≥ District Judge.
4. **42nd Amdt (1976)** removed the second-stage (punishment) hearing under Art 311.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation · □ Current link

GS-II Indian Polity

NEWS TRIGGER

□ **Lateral entry** ad **withdrawn (2024)** over reservation row; **AIJS** revival debate (states resist); **Mission Karmayogi (2020)** capacity-building reform; SC's **T.S.R. Subramanian (2013)** push for fixed tenure & Civil Services Boards.

INTRO & ORIGIN

Exam-ready treatment of □ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → □ Current link

HIGH

Foundation · Answer architecture (10/15/20-mark support)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Answer architecture (10/15/20-mark support).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

*Purpose: make this Core file independently able to answer directive-sensitive GS-II questions on the **constitutional** law of the public services — the doctrine of pleasure, Article 311 safeguards, the All-India Services and security of tenure — without opening Advanced. Civil-service reform (lateral entry, Mission Karmayogi, Citizens' Charter, e-governance, capacity building) is owned by the **Governance** folder; this file owns the **constitutional half** and cross-links reform.*

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → Answer architecture (10/15/20-mark support)

HIGH

Foundation · 5.1 Demand and directive map

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Demand family	Typical directive signals	Answer spine to use
Doctrine of pleasure vs security of tenure	"pleasure doctrine and Art 311", "balance discipline and tenure", Examine	Art 310 → Art 311 limits → case law → judicial review → verdict
Article 311 safeguards	"protection against arbitrary dismissal", "exceptions to inquiry", Analyse	Two safeguards → three exceptions → 42nd Amdt → *Dhingra/Tulsiram* → verdict
All-India Services & federalism	"AIS as an instrument of unity", "AIJS", Discuss	Art 312 → RS resolution → joint control → AIJS debate → verdict
Neutrality & politicisation	"committed vs neutral bureaucracy", "fixed tenure", Critically examine	Independence value → politicisation risk → *T.S.R. Subramanian* → reform
Accountability vs independence	"steel frame", "insulate the civil service", Comment	Tenure protects integrity → but can shield inefficiency → calibrated verdict
Constitutional design of services	"Part XIV scheme", Examine	Arts 308–314 → PSC cross-link → analysis

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.1 Demand and directive map

HIGH

Foundation · 5.2 Qualified thesis options

GS-II Indian Polity

INTRO & ORIGIN

The Indian civil service holds office at the pleasure of the executive (Art 310) but not at its mercy: Article 311, the express constitutional exceptions and judicial review convert an inherited royal prerogative into a rule-bound, reviewable power.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.2 QUALIFIED THESIS OPTIONS: RECALL MAP

5.2 Qualified thesis options

V

Dimension 1 The Indian civil service holds office at the pleasure of the executive (Art 310) but not at its mercy: Article 311, the express constitutional excepti	**Dimension 2** Article 311 is a genuine safeguard against arbitrary dismissal, but its three exceptions and the 42nd Amendment's removal of the second hearing show a
Dimension 3 The All-India Services are the constitutional keystone of Indian unity: recruited by the Centre yet serving the States, they can be created only throu	**Dimension 4** The real threat to the services is not dismissal but the transfer: without the assured tenure and Civil Services Boards that T.S.R. Subramanian sought

STATIC THEORY

- Article 311 is a genuine safeguard against arbitrary dismissal, but its three exceptions and the 42nd Amendment's removal of the second hearing show a deliberate balance — security of tenure that yields to conviction, impracticability and the security of the State.

- The All-India Services are the constitutional keystone of Indian unity: recruited by the Centre yet serving the States, they can be created only through a Rajya Sabha resolution, making them a federal bargain rather than a central imposition.

- The real threat to the services is not dismissal but the transfer: without the assured tenure and Civil Services Boards that T.S.R. Subramanian *sought, security of tenure on paper coexists with politicised postings in practice.*

- Civil-service independence and democratic accountability are not opposites to be traded off but conditions to be reconciled — tenure secures integrity, while political direction and judicial review secure answerability.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.2 Qualified thesis options

HIGH

Foundation · 5.3 Mark-scaled structures

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Marks	Architecture	Evidence load
10	Thesis → the demanded provision (Art 310/311/312) → one limit/exception → verdict	3 units, at least two exact Articles
15	Thesis → doctrine/safeguard → exceptions & amendment → case law → qualified verdict	5–6 units incl. one case
20	Thesis → Part XIV scheme → pleasure & its limits → Art 311 → AIS/federalism → tenure/CSB → accountability–independence → graded verdict	6–8 units + a "reform without amendment" paragraph

MAINS ANGLE

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.3 Mark-scaled structures

HIGH

Foundation · 5.4 Bank A — Part XIV architecture and recruitment (Claim → provision → mechanism → limitation)

GS-II Indian Polity

INTRO & ORIGIN

 Claim: the services have a dedicated constitutional Part. **Provision: Part XIV, Articles 308–323** — "Services under the Union and the States": Arts **308–314** cover the services proper; **Arts 315–323** cover the **Public Service Commissions** (owned by basic/UPSC-and-SPSC.md). **Mechanism:** it constitutionalises the permanent executive. **Limitation:** cross-link the PSC half; do not re-derive it here.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.4 BANK A — PART XIV ARCHITECTURE AND RECRUITMENT (CLAIM → PROVISION → MECHANISM → LIMITATION): RECALL MAP

5.4 Bank A — Part XIV architecture and recruitment (Claim → provision → mechanism → limitation)

V

Dimension 1
 Claim: the services have a dedicated constitutional Part. Provision: Part XIV, Articles 308–323 — "Services under the Union and the States": Arts 30

Dimension 2
 Claim: recruitment and service conditions are set by law, with a rule-making fallback. Provision: Art 309 — the appropriate legislature may regulate

Dimension 3
 Claim: Part XIV's remaining service Articles complete the scheme. Provision: Art 312A (inserted by the 28th Amendment, 1972) lets Parliament vary or

Dimension 4
/ Claim: service disputes have a dedicated constitutional adjudication track. Provision: Art 323A (inserted by the 42nd Amendment, 1976) empowers P

STATIC THEORY

- □ **Claim:** recruitment and service conditions are set by law, with a rule-making fallback. **Provision: Art 309** — the appropriate **legislature** may regulate **recruitment and conditions of service**; **until it does, the President or the Governor may make rules**. **Mechanism:** it lets administration run through executive rules pending legislation. **Limitation:** □ such rules are **subordinate** to any Act the legislature later passes and to the other Articles of Part XIV.

- □ **Claim:** Part XIV's remaining service Articles complete the scheme. **Provision: Art 312A** (inserted by the **28th Amendment, 1972**) lets **Parliament vary or revoke** the service conditions of the former **Secretary of State (ex-ICS) officers**; **Art 313** is a **transitional** provision continuing existing service laws until superseded; **Art 314** (the original protection for ex-Crown-service officers) was **repealed by the 28th Amendment, 1972**. **Mechanism:** they wound down colonial-era service guarantees. **Limitation:** □ mainly of historical-completeness value — cite for a "Part XIV scheme" question, not as live everyday law.

- □/□□ **Claim:** service disputes have a dedicated constitutional adjudication track. **Provision: Art 323A** (inserted by the **42nd Amendment, 1976**) empowers Parliament to set up **Administrative Tribunals** for recruitment and service matters, enacted as the **Administrative Tribunals Act, 1985** (the **Central Administrative Tribunal**). **Case (exact proposition):** *L. Chandra Kumar v. Union of India* (**1997**) held that tribunal decisions remain subject to **judicial review by a Division Bench of the High Court** under Art 226/227 — tribunals **supplement**, not supplant, the constitutional courts. **Limitation:** □□ adjudicatory depth is shared with the Tribunals/Judiciary files — cite the head here, cross-link the detail.

MUST-KNOW FACTS

1. Claim: the services have a dedicated constitutional Part. **Provision: Part XIV, Articles 308–323** — "Services under the Union and the States": Arts **308–314** cover the services proper; **Arts 315–323** cover the **Public Service Commissions** (owned by basic/UPSC-and-SPSC.md). **Mechanism:** it constitutionalises the permanent executive. **Limitation:** cross-link the PSC half; do not re-derive it here.

2. Claim: recruitment and service conditions are set by law, with a rule-making fallback. **Provision: Art 309** — the appropriate **legislature** may regulate **recruitment and conditions of service**; **until it does, the President or the Governor may make rules**. **Mechanism:** it lets administration run through executive rules pending legislation. **Limitation:** such rules are **subordinate** to any Act the legislature later passes and to the other Articles of Part XIV.

3. Claim: Part XIV's remaining service Articles complete the scheme. **Provision: Art 312A** (inserted by the **28th Amendment, 1972**) lets **Parliament vary or revoke** the service conditions of the former **Secretary of State (ex-ICS) officers**; **Art 313** is a **transitional** provision continuing existing service laws until superseded; **Art 314** (the original protection for ex-Crown-service officers) was **repealed by the 28th Amendment, 1972**. **Mechanism:** they wound down colonial-era service guarantees. **Limitation:** mainly of historical-completeness value — cite for a "Part XIV scheme" question, not as live everyday law.

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MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.4 Bank A — Part XIV architecture and recruitment (Claim → provision → mechanism → limitation)

HIGH

Foundation · 5.5 Bank B — The doctrine of pleasure and its Indian limits (Art 310)

GS-II Indian Polity

INTRO & ORIGIN

 Claim: tenure is at pleasure, inherited from English law. **Provision: Art 310** — except as expressly provided, a civil servant holds office **during the pleasure** of the **President** (Union) or **Governor** (State). **Mechanism:** it enables removal without a contractual cause of action. **Limitation — the Indian restrictions:** □□ the pleasure is **not absolute** — it is subject to (a) the **Art 311** procedural safeguards; (b) **express constitutional exceptions** where tenure is *not* at pleasure (e.g., **Supreme Court and High Court judges, the CAG, the Chief Election Commissioner, the Chairman/members of the UPSC** — removable only by their special constitutional processes); and (c) **judicial review** for mala fides and violation of Part III/311. So the English "unfettered pleasure" is **constitutionally fettered** in India.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Claim: tenure is at pleasure, inherited from English law. **Provision: Art 310** — except as expressly provided, a civil servant holds office **during the pleasure** of the **President** (Union) or **Governor** (State). **Mechanism:** it enables removal without a contractual cause of action. **Limitation — the Indian restrictions:** □□ the pleasure is **not absolute** — it is subject to (a) the **Art 311** procedural safeguards; (b) **express constitutional exceptions** where tenure is *not* at pleasure (e.g., **Supreme Court and High Court judges, the CAG, the Chief Election Commissioner, the Chairman/members of the UPSC** — removable only by their special constitutional processes); and (c) **judicial review** for mala fides and violation of Part III/311. So the English "unfettered pleasure" is **constitutionally fettered** in India.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.5 Bank B — The doctrine of pleasure and its Indian limits (Art 310)

HIGH

Foundation · 5.6 Bank C — Article 311 safeguards, exceptions, the 42nd Amendment and case law

GS-II Indian Polity

INTRO & ORIGIN

 Claim: Art 311 gives two procedural safeguards, to civilians only. **Provision: Art 311** — (1) no dismissal or removal by an authority **subordinate** to the appointing authority; (2) no **dismissal, removal or reduction in rank except after an inquiry** in which the person has a **reasonable opportunity of being heard**. **Mechanism:** it imports natural justice into disciplinary action. **Limitation:** it protects members of **civil services / civil posts only** — **defence personnel are excluded**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.6 BANK C — ARTICLE 311 SAFEGUARDS, EXCEPTIONS, THE 42ND AMENDMENT AND CASE LAW: RECALL MAP

5.6 Bank C — Article 311 safeguards, exceptions, the 42nd Amendment and case law

V

Dimension 1 □ Claim: Art 311 gives two procedural safeguards, to civilians only. Provision: Art 311 — (1) no dismissal or removal by an authority subordinate to t	**Dimension 2** □ Claim: the inquiry can be dispensed with in exactly three situations. Provision: the second proviso to Art 311(2) — the inquiry is excluded where (i
Dimension 3 □ Claim: the 42nd Amendment narrowed the safeguard. Provision: the 42nd Amendment (1976) removed the second-stage opportunity (the earlier right to ma	**Dimension 4** □/□□ Leading propositions (case law, exact): Parshotam Lal Dhingra v. Union of India (1958) laid down the "motive vs foundation" test — a termination

STATIC THEORY

- □ **Claim:** the inquiry can be dispensed with in exactly three situations. **Provision:** the **second proviso to Art 311(2)** — the inquiry is excluded where (i) dismissal, removal or reduction in rank is imposed on the ground of conduct that led to **conviction on a criminal charge**; (ii) the authority is satisfied, **for reasons recorded in writing**, that holding an inquiry is **not reasonably practicable**; or (iii) the **President/Governor** is satisfied that in the **interest of the security of the State** an inquiry is not expedient. **Mechanism:** it balances fairness against conviction, disorder and security. **Limitation:** □□ the "not practicable" ground is subject to **limited judicial review**; the State-security satisfaction is exceptional and remains reviewable on constitutionally recognised grounds.

- □ **Claim:** the 42nd Amendment narrowed the safeguard. **Provision:** the **42nd Amendment (1976)** removed the **second-stage opportunity** (the earlier right to make a representation against the **proposed penalty**); now the single reasonable opportunity is at the **inquiry** stage. **Mechanism:** it streamlined disciplinary action. **Limitation:** □□ critics see it as a dilution of fair-hearing rights.

- □/□□ **Leading propositions (case law, exact):** *Parshotam Lal Dhingra v. Union of India* (**1958**) laid down the **"motive vs foundation"** test — a termination is "punishment" attracting Art 311 only when the **misconduct is the foundation** of the order, not merely its motive (so bona fide termination of a probationer/temporary servant is outside Art 311). *Union of India v. Tulsiram Patel* (**1985**, Constitution Bench) **upheld the three exceptions** to the inquiry and held that where an exception applies, natural justice is **excluded to that extent**, subject to limited review. **Use/caution:** cite these as **exact propositions**, not name-drops.

- □/□□ **Claim:** a fair inquiry includes seeing the report against you. **Case (exact proposition):** *Managing Director, ECIL v. B. Karunakar* (**1993**, Constitution Bench) held that where the inquiry officer's report is **against** the delinquent, a **copy must be furnished** before the disciplinary authority imposes a penalty, as part of the **reasonable opportunity** under Art 311(2); non-supply vitiates the order only where it causes **prejudice**. **Use:** cite for the *content* of natural justice in disciplinary law.

- □ **Claim:** the safeguard's scope is civil service *or* civil post. **Provision:** Art 311 protects a person **holding a civil post** under the Union/State even if not a member of an organised service; **defence personnel, workmen and purely contractual engagements** fall outside — pin the scope before applying the safeguard.

MUST-KNOW FACTS

1. Claim: Art 311 gives two procedural safeguards, to civilians only. **Provision: Art 311** — (1) no dismissal or removal by an authority **subordinate** to the appointing authority; (2) no **dismissal, removal or reduction in rank except after an inquiry** in which the person has a **reasonable opportunity of being heard**. **Mechanism:** it imports natural justice into disciplinary action. **Limitation:** it protects members of **civil services / civil posts only** — **defence personnel are excluded**.

2. Claim: the inquiry can be dispensed with in exactly three situations. **Provision:** the **second proviso to Art 311(2)** — the inquiry is excluded where (i) dismissal, removal or reduction in rank is imposed on the ground of conduct that led to **conviction on a criminal charge**; (ii) the authority is satisfied, **for reasons recorded in writing**, that holding an inquiry is **not reasonably practicable**; or (iii) the **President/Governor** is satisfied that in the **interest of the security of the State** an inquiry is not expedient. **Mechanism:** it balances fairness against conviction, disorder and security. **Limitation:** □□ the "not practicable" ground is subject to **limited judicial review**; the State-security satisfaction is exceptional and remains reviewable on constitutionally recognised grounds.

3. Claim: the 42nd Amendment narrowed the safeguard. **Provision:** the **42nd Amendment (1976)** removed the **second-stage opportunity** (the earlier right to make a representation against the **proposed penalty**); now the single reasonable opportunity is at the **inquiry** stage. **Mechanism:** it streamlined disciplinary action. **Limitation:** □□ critics see it as a dilution of fair-hearing rights.

4. /□□ **Leading propositions (case law, exact):** *Parshotam Lal Dhingra v. Union of India* (**1958**) laid down the **"motive vs foundation"** test — a termination is "punishment" attracting Art 311 only when the **misconduct is the foundation** of the order, not merely its motive (so bona fide termination of a probationer/temporary servant is outside Art 311). *Union of India v. Tulsiram Patel* (**1985**, Constitution Bench) **upheld the three exceptions** to the inquiry and held that where an exception applies, natural justice is **excluded to that extent**, subject to limited review. **Use/caution:** cite these as **exact propositions**, not name-drops.

5. /□□ **Claim:** a fair inquiry includes seeing the report against you. **Case (exact proposition):** *Managing Director, ECIL v. B. Karunakar* (**1993**, Constitution Bench) held that where the inquiry officer's report is **against** the delinquent, a **copy must be furnished** before the disciplinary authority imposes a penalty, as part of the **reasonable opportunity** under Art 311(2); non-supply vitiates the order only where it causes **prejudice**. **Use:** cite for the *content* of natural justice in disciplinary law.

6. Claim: the safeguard's scope is civil service *or* civil post. **Provision:** Art 311 protects a person **holding a civil post** under the Union/State even if not a member of an organised service; **defence personnel, workmen and purely contractual engagements** fall outside — pin the scope before applying the safeguard.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.6 Bank C — Article 311 safeguards, exceptions, the 42nd Amendment and case law

HIGH

Foundation · 5.7 Bank D — All-India Services and the federal safeguard (Art 312)

GS-II Indian Polity

INTRO & ORIGIN

□ **Claim:** creating a new AIS needs the States' House to consent. **Provision: Art 312** — Parliament may create a **new All-India Service** (including an **All-India Judicial Service**) only if the **Rajya Sabha** first passes a resolution, supported by **not less than two-thirds of members present and voting**, that it is necessary in the **national interest**. **Mechanism:** it makes the AIS a **federal bargain** — the States' House guards State interests. **Limitation:** □ Article 312(2) deems IAS and IPS created under the constitutional route; the Indian Forest Service was later constituted through the All-India Services Act framework.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.7 BANK D — ALL-INDIA SERVICES AND THE FEDERAL SAFEGUARD (ART 312): RECALL MAP

5.7 Bank D — All-India Services and the federal safeguard (Art 312)

V

Dimension 1 □ Claim: creating a new AIS needs the States' House to consent. Provision: Art 312 — Parliament may create a new All-India Service (including an All-I	**Dimension 2** □ Claim: AIS are jointly controlled — the "unity" instrument. Mechanism: officers are recruited and trained by the Centre but serve the States; ultima
Dimension 3 □/□□ Claim: the AIJS is enabled but not created. Provision: Art 312 expressly allows an All-India Judicial Service (post not below District Judge) by	**Dimension 4** □ Claim: the existing AIS run on a 1951 statute and a joint-cadre system. Provision: the All-India Services Act, 1951 and the service rules govern the

STATIC THEORY

- □ **Claim:** AIS are jointly controlled — the "unity" instrument. **Mechanism:** officers are **recruited and trained by the Centre** but serve the **States**; **ultimate control lies with the Centre**, immediate control with the States (cross-link basic/Centre-State-Relations.md). **Significance:** they knit the Union and States administratively. **Limitation:** □□ this dual control is itself a source of Centre–State friction.

- □/□□ **Claim:** the AIJS is enabled but not created. **Provision: Art 312** expressly allows an **All-India Judicial Service** (post **not below District Judge**) by **ordinary law** — **no Art 368 amendment needed** — yet **no such law has been made**. **Debate:** the Centre favours it to fill vacancies and standardise; many **States and High Courts resist** on federalism, language and control grounds. **Status:** □□ a **live proposal**, not law.

- □ **Claim:** the existing AIS run on a 1951 statute and a joint-cadre system. **Provision:** the **All-India Services Act, 1951** and the service rules govern the **IAS, IPS and IFoS**; up to **33⅓%** of senior posts are filled by **promotion from State services** through a UPSC-chaired committee, and **cadre allocation, deputation and empanelment** are managed by the **cadre-controlling ministry** (e.g., DoPT for the IAS). **Mechanism:** it operationalises the "recruited by the Centre, serving the States" design. **Limitation:** □□ deputation and empanelment are recurring **Centre–State flashpoints** over control of officers (cross-link basic/Centre-State-Relations.md).

- □/□ **Claim:** the deputation lever is rule-governed and contested. **Provision:** the **IAS (Cadre) Rules, 1954** govern cadre allocation and **Centre–State deputation**; □ the Union's **2021 proposal** to amend these rules — to enable central deputation of officers even without State concurrence in specified situations — drew formal objections from several States as a threat to cadre control. **Use:** cite as a **live federal flashpoint / proposal**, and verify its current status before asserting it is in force.

MUST-KNOW FACTS

1. Claim: creating a new AIS needs the States' House to consent. **Provision: Art 312** — Parliament may create a **new All-India Service** (including an **All-India Judicial Service**) only if the **Rajya Sabha** first passes a resolution, supported by **not less than two-thirds of members present and voting**, that it is necessary in the **national interest**. **Mechanism:** it makes the AIS a **federal bargain** — the States' House guards State interests. **Limitation:** Article 312(2) deems IAS and IPS created under the constitutional route; the Indian Forest Service was later constituted through the All-India Services Act framework.

2. Claim: AIS are jointly controlled — the "unity" instrument. **Mechanism:** officers are **recruited and trained by the Centre** but serve the **States**; **ultimate control lies with the Centre**, immediate control with the States (cross-link basic/Centre-State-Relations.md). **Significance:** they knit the Union and States administratively. **Limitation:** □□ this dual control is itself a source of Centre–State friction.

3. /□□ **Claim:** the AIJS is enabled but not created. **Provision: Art 312** expressly allows an **All-India Judicial Service** (post **not below District Judge**) by **ordinary law** — **no Art 368 amendment needed** — yet **no such law has been made**. **Debate:** the Centre favours it to fill vacancies and standardise; many **States and High Courts resist** on federalism, language and control grounds. **Status:** □□ a **live proposal**, not law.

4. Claim: the existing AIS run on a 1951 statute and a joint-cadre system. **Provision:** the **All-India Services Act, 1951** and the service rules govern the **IAS, IPS and IFoS**; up to **33⅓%** of senior posts are filled by **promotion from State services** through a UPSC-chaired committee, and **cadre allocation, deputation and empanelment** are managed by the **cadre-controlling ministry** (e.g., DoPT for the IAS). **Mechanism:** it operationalises the "recruited by the Centre, serving the States" design. **Limitation:** □□ deputation and empanelment are recurring **Centre–State flashpoints** over control of officers (cross-link basic/Centre-State-Relations.md).

5. /□ **Claim:** the deputation lever is rule-governed and contested. **Provision:** the **IAS (Cadre) Rules, 1954** govern cadre allocation and **Centre–State deputation**; □ the Union's **2021 proposal** to amend these rules — to enable central deputation of officers even without State concurrence in specified situations — drew formal objections from several States as a threat to cadre control. **Use:** cite as a **live federal flashpoint / proposal**, and verify its current status before asserting it is in force.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.7 Bank D — All-India Services and the federal safeguard (Art 312)

HIGH

Foundation · 5.8 Bank E — Security of tenure, transfers and cadre control

GS-II Indian Polity

INTRO & ORIGIN

□/□□ **Claim:** the operative threat to neutrality is the transfer, and the Court has tried to address it. **Case (exact proposition):** *T.S.R. Subramanian v. Union of India* (**2013**) directed that (i) **Civil Services Boards** be constituted at the Union and State levels to advise on **postings and transfers**; (ii) civil servants be given a **minimum assured tenure**; and (iii) officers should **not act on oral instructions** — directions should be recorded in writing. **Mechanism:** it aimed to insulate postings from arbitrary political interference. **Status caution:** □ implementation has been **partial and uneven** — several States have not fully constituted CSBs or guaranteed fixed tenure; treat these as **judicial directions imperfectly implemented**, not settled practice.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.8 BANK E — SECURITY OF TENURE, TRANSFERS AND CADRE CONTROL: RECALL MAP

5.8 Bank E — Security of tenure, transfers and cadre control

V

Dimension 1 □/□□ Claim: the operative threat to neutrality is the transfer, and the Court has tried to address it. Case (exact proposition): T.S.R. Subramanian v.	**Dimension 2** □□ Cadre-control frame: the Centre (through the cadre-controlling ministry, e.g. DoPT for the IAS) manages cadre allocation, deputation and empanelmen
Dimension 3 □□/□ Reform pedigree: the Hota Committee (2004) and the Second ARC (10th Report, Refurbishing of Personnel Administration, 2008) recommended fixed min	

STATIC THEORY

- □□ **Cadre-control frame:** the Centre (through the cadre-controlling ministry, e.g. DoPT for the IAS) manages cadre allocation, deputation and empanelment; this is the lever behind Centre–State tussles over officers.

- □□/□ **Reform pedigree:** the **Hota Committee (2004)** and the **Second ARC (10th Report, *Refurbishing of Personnel Administration*, 2008)** recommended **fixed minimum tenure** and insulation of postings — the same fixes *T.S.R. Subramanian* (2013) later judicialised; cite them as the **policy lineage** behind the tenure demand, keeping deeper reform detail in the Governance folder.

MUST-KNOW FACTS

1. /□□ Claim: the operative threat to neutrality is the transfer, and the Court has tried to address it. **Case (exact proposition):** *T.S.R. Subramanian v. Union of India* (**2013**) directed that (i) **Civil Services Boards** be constituted at the Union and State levels to advise on **postings and transfers**; (ii) civil servants be given a **minimum assured tenure**; and (iii) officers should **not act on oral instructions** — directions should be recorded in writing. **Mechanism:** it aimed to insulate postings from arbitrary political interference. **Status caution:** □ implementation has been **partial and uneven** — several States have not fully constituted CSBs or guaranteed fixed tenure; treat these as **judicial directions imperfectly implemented**, not settled practice.

2. □□/ Reform pedigree: the **Hota Committee (2004)** and the **Second ARC (10th Report, *Refurbishing of Personnel Administration*, 2008)** recommended **fixed minimum tenure** and insulation of postings — the same fixes *T.S.R. Subramanian* (2013) later judicialised; cite them as the **policy lineage** behind the tenure demand, keeping deeper reform detail in the Governance folder.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.8 Bank E — Security of tenure, transfers and cadre control

HIGH

Foundation · 5.9 Mechanism, institutional incentives and consequences

GS-II Indian Polity

INTRO & ORIGIN

□□ **Why the pleasure doctrine survives:** the executive needs to remove the manifestly unfit and disloyal; the Constitution keeps the *power* but fetters its *exercise*.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.9 MECHANISM, INSTITUTIONAL INCENTIVES AND CONSEQUENCES: RECALL MAP

5.9 Mechanism, institutional incentives and consequences

V

Dimension 1 □□ Why the pleasure doctrine survives: the executive needs to remove the manifestly unfit and disloyal; the Constitution keeps the power but fetters i	**Dimension 2** □□ Why security of tenure matters: a servant who can be dismissed or transferred at will has an incentive to please the political master, not the law
Dimension 3 □□ Consequences of weak transfer-protection: frequent, politicised transfers undermine institutional memory and honest administration even where forma	**Dimension 4** □□ Perverse incentive of empanelment/deputation: because the Centre controls empanelment and choice postings, ambitious officers face an incentive to

STATIC THEORY

- □□ **Why security of tenure matters:** a servant who can be dismissed or transferred at will has an incentive to please the political master, not the law — hence Art 311 and the demand for fixed tenure.

- □□ **Consequences of weak transfer-protection:** frequent, politicised transfers undermine institutional memory and honest administration even where formal dismissal protection is strong — the tenure problem, not the dismissal problem, is the live one.

- □□ **Perverse incentive of empanelment/deputation:** because the Centre controls empanelment and choice postings, ambitious officers face an incentive to align with the political executive of the day — the reason reformers press for **rule-bound, board-vetted** postings rather than discretionary ones.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.9 Mechanism, institutional incentives and consequences

HIGH

Foundation · 5.10 Criticism, counter-argument and the accountability–independence tension

GS-II Indian Polity

INTRO & ORIGIN

Independence case: □□ Art 311 and assured tenure protect **integrity and impartiality**, letting officers resist illegal orders.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.10 CRITICISM, COUNTER-ARGUMENT AND THE ACCOUNTABILITY–INDEPENDENCE TENSION: RECALL MAP

5.10 Criticism, counter-argument and the accountability–independence tension

V

Dimension 1 Independence case: □□ Art 311 and assured tenure protect integrity and impartiality, letting officers resist illegal orders.	**Dimension 2** Accountability counter: □□ over-strong protection can shield inefficiency and misconduct; disciplinary action becomes slow and litigation-prone — henc
Dimension 3 The calibrated answer: □□ the goal is neutral competence — insulated enough to be honest, answerable enough to be responsive; the instruments are Art	**Dimension 4** Variation: □□ the AIJS and lateral-entry debates show that reform is contested along federal and reservation lines, not merely on efficiency.

STATIC THEORY

- **Accountability counter:** □□ over-strong protection can **shield inefficiency and misconduct**; disciplinary action becomes slow and litigation-prone — hence the 42nd Amendment's streamlining and reform demands.

- **The calibrated answer:** □□ the goal is **neutral competence** — insulated enough to be honest, answerable enough to be responsive; the instruments are Art 311 (against arbitrariness), CSBs and fixed tenure (against politicised transfers), and judicial review (against mala fides).

- **Variation:** □□ the AIJS and lateral-entry debates show that reform is contested along **federal** and **reservation** lines, not merely on efficiency.

- **Mis-targeted-protection critique:** □□ disciplinary proceedings are slow and heavily litigated, so misconduct is under-punished while honest officers stay under-protected against politicised transfers — the safeguard is **strong on dismissal, weak on tenure**, i.e. mis-aimed.

MAINS ANGLE

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.10 Criticism, counter-argument and the accountability–independence tension

HIGH

Foundation · 5.11 Verdict scaffolds

GS-II Indian Polity

INTRO & ORIGIN

Pleasure verdict: "India retained the pleasure doctrine but disarmed its arbitrariness — Art 311, the constitutional exceptions and judicial review turn a royal prerogative into a rule-of-law power."

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.11 VERDICT SCAFFOLDS: RECALL MAP

5.11 Verdict scaffolds

V

Dimension 1 Pleasure verdict: "India retained the pleasure doctrine but disarmed its arbitrariness — Art 311, the constitutional exceptions and judicial review tu	**Dimension 2** AIS verdict: "The All-India Services are a federal instrument of unity created only with the States' consent through the Rajya Sabha — administrative
Dimension 3 Reform verdict: "The security the services need is less against dismissal than against the transfer; the unfinished task is to give effect to assured	**Dimension 4** Federal-personnel verdict: "The All-India Services are shared property; when the Centre reaches for the deputation lever without the States' consent i

STATIC THEORY

- **AIS verdict:** "The All-India Services are a federal instrument of unity created only with the States' consent through the Rajya Sabha — administrative integration by bargain, not by fiat."

- **Reform verdict:** "The security the services need is less against dismissal than against the transfer; the unfinished task is to give effect to assured tenure and Civil Services Boards, not to weaken Article 311."

- **Federal-personnel verdict:** "The All-India Services are shared property; when the Centre reaches for the deputation lever without the States' consent it strains the very bargain — Art 312 and the 1951 Act — that makes those services an instrument of union rather than of central command."

MAINS ANGLE

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.11 Verdict scaffolds

HIGH

Foundation · 5.12 Prelims close-option distinctions · Table 1.1

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
Art 310 vs Art 311	**310** = doctrine of **pleasure**; **311** = **safeguards** limiting that pleasure
Who Art 311 protects	**Civil** services/posts only — **defence personnel are excluded**
Art 311 exceptions	**Conviction · inquiry not practicable · security of State** (second proviso to 311(2))
42nd Amendment effect	Removed the **second-stage** (post-penalty) hearing; one opportunity at the **inquiry**
Art 312 resolution	**Rajya Sabha**, **2/3 of members present and voting** — a **State**-protecting device (not Lok Sabha)
Creating an AIJS	By **ordinary law** under Art 312 — **not** a constitutional amendment; **not yet made**
IFoS	The **third All-India Service** (1966) — **not** a Central Service
Promotion quota	Up to **33⅓%** of senior AIS posts from **State services**

MAINS ANGLE

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.12 Prelims close-option distinctions

HIGH

Foundation · 5.12 Prelims close-option distinctions · Table 1.2

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
Pleasure doctrine reach	**Not absolute** — limited by Art 311, express exceptions and judicial review
Part XIV span	Arts **308–323** (services **308–314**; PSCs **315–323**)
AIS control	**Recruited/trained by the Centre, serve the States**; ultimate control Centre, immediate control State — **not** wholly central
Art 311 report-supply	*ECIL v. Karunakar* (1993) — inquiry report must be furnished before penalty; relief only on proof of **prejudice**
Art 323A vs 323B	**323A** = **Administrative** Tribunals (service matters, **Parliament** only); **323B** = tribunals for **other** listed matters (**Parliament or State** legislatures)
Tribunal finality	*L. Chandra Kumar* (1997) — HC **judicial review (Art 226/227)** survives; tribunals are **not** the final word
Art 312A vs 314	**312A** lets Parliament vary ex-ICS conditions; **314** (original protection) was **repealed** (28th Amendment, 1972)
Cadre-rules source	**IAS (Cadre) Rules, 1954** (subordinate legislation) — **not** the Constitution or the 1951 Act itself

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.12 Prelims close-option distinctions

HIGH

Foundation · 5.13 Factual-risk and current-status controls · Part 1

GS-II Indian Polity

NEWS TRIGGER

 The **pleasure doctrine (Art 310) is limited** by Art 311, constitutional exceptions and judicial review — never state it as absolute. **Art 311's three exceptions** are exact (conviction / not practicable-with-reasons / security of State); the **42nd Amendment** removed only the **second** opportunity. **Art 312 = Rajya Sabha** 2/3 present-and-voting; the **AIJS** is **enabled but not created** and needs only **ordinary law**.

INTRO & ORIGIN

/ *T.S.R. Subramanian* (2013) directions (CSB, fixed tenure, written instructions) are **judicial directions, partially implemented** — state the status, do not claim they are universally in force.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.13 FACTUAL-RISK AND CURRENT-STATUS CONTROLS: RECALL MAP

5.13 Factual-risk and current-status controls

V

Dimension 1 □/□ T.S.R. Subramanian (2013) directions (CSB, fixed tenure, written instructions) are judicial directions, partially implemented — state the status,	**Dimension 2** □□ Keep civil-service reform (lateral entry, Mission Karmayogi, Citizens' Charter, e-governance) in the Governance folder; cite as cross-links, do not
Dimension 3 □□ Cite Dhingra (1958) and Tulsiram Patel (1985) as exact propositions, not as decorative names.	**Dimension 4** □ Defence personnel are outside Art 311; do not extend the safeguard to them.

STATIC THEORY

- □□ Keep **civil-service reform** (lateral entry, Mission Karmayogi, Citizens' Charter, e-governance) in the **Governance** folder; cite as cross-links, do not develop as constitutional law.

- □□ Cite *Dhingra* (1958) and *Tulsiram Patel* (1985) as **exact propositions**, not as decorative names.

- □ **Defence personnel** are outside Art 311; do not extend the safeguard to them.

- □ **Art 323A Administrative Tribunals** were enabled by the **42nd Amendment (1976)**; *L. Chandra Kumar* (1997) preserved **High Court judicial review** — never state that tribunals oust the constitutional courts.

- □ The **IAS (Cadre) Rules** deputation-amendment (2021) is a **proposal**, not settled law — verify its status before asserting it is in force.

- □□ Cite the **Hota Committee (2004)** and **Second ARC (2008)** as **recommendations**; fixed tenure and CSBs are **judicially directed and partly adopted**, not universally enacted.

MUST-KNOW FACTS

1. /□ *T.S.R. Subramanian* (2013) directions (CSB, fixed tenure, written instructions) are **judicial directions, partially implemented** — state the status, do not claim they are universally in force.

2. Defence personnel are outside Art 311; do not extend the safeguard to them.

3. Art 323A Administrative Tribunals were enabled by the **42nd Amendment (1976)**; *L. Chandra Kumar* (1997) preserved **High Court judicial review** — never state that tribunals oust the constitutional courts.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.13 Factual-risk and current-status controls

HIGH

Foundation · 5.13 Factual-risk and current-status controls · Part 2

GS-II Indian Polity

INTRO & ORIGIN

□ Distinguish a **civil post** (protected by Art 311) from **defence or purely contractual** engagements (outside it); scope errors are a common trap.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Distinguish a **civil post** (protected by Art 311) from **defence or purely contractual** engagements (outside it); scope errors are a common trap.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → 5.13 Factual-risk and current-status controls

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Constitutional boundary: *Part XIV Articles 308-314 govern services under the Union and States; Articles 315-323 separately govern UPSC, SPSCs and the Joint PSC. Public Services owns the service relationship, while Polity 28 owns the constitutional commission.* ***Article 309 hierarchy:*** *the appropriate legislature may regulate recruitment and service conditions. Until legislation operates, the President or Governor may make rules. Executive instructions cannot override the Constitution, a statute or valid statutory rules.* ***Pleasure and protection:*** *Article 310's pleasure is constitutionally fettered by Article 311, equality, natural justice and judicial review. Article 311 protects members of civil services and holders of civil posts, not defence personnel or every employee of every public body.* ***Article 311 mechanics:*** *dismissal/removal cannot be by an authority subordinate to the appointing authority; dismissal, removal or reduction in rank ordinarily requires inquiry and reasonable opportunity. The three inquiry exceptions are conviction, recorded impracticability and President/Governor satisfaction concerning security of the State.* ***Case controls:*** *Parshotam Lal Dhingra distinguishes punitive foundation from non-punitive termination; Tulsiram Patel controls the three exceptions; ECIL v B. Karunakar requires supply of an adverse inquiry report subject to prejudice; T.S.R. Subramanian requires written directions and institutional tenure safeguards.* ***AIS federal design:*** *Article 312 requires a Rajya Sabha resolution supported by not less than two-thirds of members present and voting before Parliament creates a new All-India Service. IAS, IPS and Indian Forest Service remain the existing AIS; Centre-State control is dual rather than exclusively Union or State.* ***AIJS status, checked 5 September 2026:*** *Article 312 permits an All-India Judicial Service not including a post inferior to district judge, but no creating law or recruitment notification was located. Consultation and advocacy are not an existing service.* ***Reform boundary:*** *Mission Karmayogi/iGOT and the Capacity Building Commission remain operative capacity-building architecture. Lateral entry, fixed tenure, cadre deputation and performance systems must be stated with the applicable rule and date; advertisement, vacancy and dashboard totals are deliberately unfrozen.* ***Remedy tracks:*** *departmental discipline, CVC/CVO vigilance, criminal investigation, CAT adjudication and High Court judicial review are distinct. L. Chandra Kumar preserves Articles 226/227 review over tribunal decisions.* ***PYQ firewall:*** *the verified adjacent 2020 civil-services-reform demand is retained as supporting application. PSC recruitment, governance reform, ethics and tribunal procedure remain cross-owned where their principal demand lies.*

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Ch. 66 (Part XIV) and Centre-State chapter (direct check of the local Sixth Revised Edition PDF).
Dimension 3 □ = from source book · □□ = inference / case law · □ = current affairs.	**Dimension 4** Companion: basic/Public-Services.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Ch. 66 (Part XIV) and Centre-State chapter (direct check of the local Sixth Revised Edition PDF).

- □ = from source book · □□ = inference / case law · □ = current affairs.

- *Companion: basic/Public-Services.md.*

MUST-KNOW FACTS

1. = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · PART A — CLASSIFICATION OF SERVICES □

GS-II Indian Polity

INTRO & ORIGIN

Three categories: **All-India Services · Central Services · State Services**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART A — CLASSIFICATION OF SERVICES □: RECALL MAP

PART A — CLASSIFICATION OF SERVICES □

V

Dimension 1 Three categories: All-India Services · Central Services · State Services.	**Dimension 2** □ All-India Services (AIS): IAS, IPS, IFoS (Forest) — serve both Centre & states by turns; recruited &
Dimension 3 trained by the Centre but jointly controlled (ultimate control = Centre, immediate control = states).	**Dimension 4** □ Modern Union classification uses Group A, Group B and Group C. The older Class I-IV and Group D framework is historical; gazetted status does not it

STATIC THEORY

- □ **All-India Services (AIS): IAS, IPS, IFoS (Forest)** — serve **both** Centre & states by turns; **recruited &

- trained by the Centre **but** jointly controlled** (ultimate control = Centre, immediate control = states).

- □ Modern Union classification uses **Group A, Group B and Group C**. The older Class I-IV and Group D framework is historical; gazetted status does not itself define constitutional service or Article 311 coverage.

- □ **ICS → IAS** and **IP → IPS** in 1947; **IFoS created in 1966** as the third AIS.

- □ Up to **33⅓%** of senior AIS posts filled by **promotion from state services** (via a UPSC-chaired selection committee).

MUST-KNOW FACTS

1. All-India Services (AIS): IAS, IPS, IFoS (Forest) — serve **both** Centre & states by turns; **recruited &

2. Modern Union classification uses **Group A, Group B and Group C**. The older Class I-IV and Group D framework is historical; gazetted status does not itself define constitutional service or Article 311 coverage.

3. ICS → IAS and **IP → IPS** in 1947; **IFoS created in 1966** as the third AIS.

4. Up to **33⅓%** of senior AIS posts filled by **promotion from state services** (via a UPSC-chaired selection committee).

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → PART A — CLASSIFICATION OF SERVICES □

HIGH

Advanced · PART B — CONSTITUTIONAL PROVISIONS (Arts 308–314) □□

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Article	Provision
□ **309**	Parliament/state legislatures regulate **recruitment & service conditions**; till then President/Governor make rules
□ **310**	**Doctrine of Pleasure** — civil servants hold office **during the pleasure** of the President/Governor
□ **311**	**Two safeguards** against arbitrary dismissal (the key exam article)
□ **312**	**All-India Services** (incl. **All-India Judicial Service**) via a **Rajya Sabha resolution**
□ **312-A**	Parliament may vary service conditions of ex-Crown officers (28th Amdt 1972)
□ **314**	**Repealed** (28th Amdt 1972)

MAINS ANGLE

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → PART B — CONSTITUTIONAL PROVISIONS (Arts 308–314) □□

HIGH

Advanced · Article 311 — the two safeguards □□

GS-II Indian Polity

INTRO & ORIGIN

□ (a) A civil servant **cannot be dismissed/removed by an authority subordinate** to the appointing authority. □ (b) Cannot be dismissed/removed/reduced in rank **except after an inquiry** with a **reasonable opportunity of being heard**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

ARTICLE 311 — THE TWO SAFEGUARDS □□: RECALL MAP

Article 311 — the two safeguards □□

V

Dimension 1 □ (a) A civil servant cannot be dismissed/removed by an authority subordinate to the appointing authority. □ (b) Cannot be dismissed/removed/reduced i	**Dimension 2** □□ Three exceptions where the inquiry is dispensed with:
Dimension 3 Penalty on the ground of conduct that led to conviction on a criminal charge;	**Dimension 4** Authority is satisfied (reasons in writing) that holding an inquiry is not reasonably practicable;

STATIC THEORY

- □□ **Three exceptions** where the **inquiry** is dispensed with:

- Penalty on the ground of conduct that led to **conviction on a criminal charge**;

- Authority is satisfied (**reasons in writing**) that holding an inquiry is **not reasonably practicable**;

- **President/Governor** satisfied that in the **security of the State** it is not expedient to hold an inquiry.

- □ The **42nd Amendment (1976)** abolished the **second-stage** hearing (representation against the *proposed punishment*) — now only one opportunity (at the inquiry stage).

MUST-KNOW FACTS

1. (a) A civil servant **cannot be dismissed/removed by an authority subordinate** to the appointing authority. (b) Cannot be dismissed/removed/reduced in rank **except after an inquiry** with a **reasonable opportunity of being heard**.

2. The **42nd Amendment (1976)** abolished the **second-stage** hearing (representation against the *proposed punishment*) — now only one opportunity (at the inquiry stage).

MAINS ANGLE

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → Article 311 — the two safeguards □□

HIGH

Advanced · Article 312 — All-India Services □

GS-II Indian Polity

INTRO & ORIGIN

□ Parliament may create **new AIS (incl. an All-India Judicial Service)** only if the **Rajya Sabha** passes a resolution by a **2/3 majority of members present & voting** (a **federal safeguard**). **All-India Services Act, 1951** governs them. □ **AIJS** — enabled by the 42nd Amendment but **no law made so far**; its post cannot be **inferior to a District Judge**, and its creation is **not** a constitutional amendment (no Art 368 route).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Parliament may create **new AIS (incl. an All-India Judicial Service)** only if the **Rajya Sabha** passes a resolution by a **2/3 majority of members present & voting** (a **federal safeguard**). **All-India Services Act, 1951** governs them. **AIJS** — enabled by the 42nd Amendment but **no law made so far**; its post cannot be **inferior to a District Judge**, and its creation is **not** a constitutional amendment (no Art 368 route).

MAINS ANGLE

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → Article 312 — All-India Services □

HIGH

Advanced · □ Citizens' Charter (high-yield gap)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Sevottam component	Meaning
Citizen's Charter	Standards and commitments made visible
Grievance redress	Complaint handling and accountability loop
Service delivery capability	Process, staff and infrastructure improvements

MAINS ANGLE

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → □ Citizens' Charter (high-yield gap)

HIGH

Advanced · □ Citizens' Charter (high-yield gap)

GS-II Indian Polity

INTRO & ORIGIN

□ Grounded in M. Laxmikant *Indian Polity* + □□ standard + □ verified. Added to close a UPSC gap.

Advanced learning layer: concepts → constitutional detail → UPSC application.

□ CITIZENS' CHARTER (HIGH-YIELD GAP): RECALL MAP

□ Citizens' Charter (high-yield gap)

V

Dimension 1 □ Grounded in M. Laxmikant Indian Polity + □□ standard + □ verified. Added to close a UPSC gap.	**Dimension 2** □ Laxmikant/ARC material supports Citizens' Charters by service-providing departments to state citizen entitlements.
Dimension 3 □ 2nd ARC's citizen-centric administration report backed the Sevottam model for service standards, grievance redress and delivery enablers.	**Dimension 4** □□ A Citizens' Charter publicly states services, timelines, standards, grievance channels and responsible officials.

STATIC THEORY

- □ Laxmikant/ARC material supports Citizens' Charters by service-providing departments to state citizen entitlements.
- □ 2nd ARC's citizen-centric administration report backed the **Sevottam** model for service standards, grievance redress and delivery enablers.
- □□ A Citizens' Charter publicly states services, timelines, standards, grievance channels and responsible officials.
- □ It is generally **non-justiciable** unless a separate law/service-guarantee statute makes a promise enforceable.
- □ Trap: A Charter is an administrative accountability tool, not automatically a legally enforceable right.

MEMORY HOOK

Trap: A Charter is an administrative accountability tool, not automatically a legally enforceable right.

MUST-KNOW FACTS

1. Grounded in M. Laxmikant *Indian Polity* + □□ standard + □ verified. Added to close a UPSC gap.

2. Laxmikant/ARC material supports Citizens' Charters by service-providing departments to state citizen entitlements.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → □ Citizens' Charter (high-yield gap)

HIGH

Advanced · □ e-Governance (PYQ)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Type	Flow	Examples
□□ G2C	Government → Citizen	DBT, DigiLocker, UMANG, Passport Seva
□□ G2B	Government → Business	GST portal, e-tendering, company filings
□□ G2G	Government → Government	e-Office, data sharing between departments
□□ G2E	Government → Employee	payroll, service records, attendance/HR systems

MAINS ANGLE

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → □ e-Governance (PYQ)

HIGH

Advanced · □ e-Governance (PYQ)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of □ e-Governance (PYQ).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

□ *Grounded in M. Laxmikant Indian Polity + □□ standard + □ verified. Added to close a UPSC gap. □ Laxmikant links responsive administration to transparency through technology and citizen participation. □□ e-Governance is use of ICT to make government services faster, transparent, integrated and citizen-centric. □ Digital India, DBT, UMANG and DigiLocker are verified live examples of service delivery and document/platform integration. □ 2nd ARC treated e-Governance as a governance reform, not merely computerisation. □ Trap: e-Governance is process re-engineering + accountability; digitising a bad manual process is not enough.*

STUDY LINK
Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → □ e-Governance (PYQ)

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

services excluded**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: Art 312 needs a Lok Sabha resolution

CORRECT: it is the **RAJYA SABHA** (2/3 present & voting) — a state-protecting device.

WRONG: Art 311 safeguards apply to defence personnel

CORRECT: only civilians (civil services/civil posts); **defence

WRONG: The doctrine of pleasure is absolute

CORRECT: it is **limited by Art 311** and **judicial review**.

WRONG: The All-India Judicial Service already exists

CORRECT: enabled (42nd Amdt) but never created.

WRONG: IFoS is a Central Service

CORRECT: it's the **third All-India Service** (since 1966).

WRONG: Creating an AIJS requires a constitutional amendment

CORRECT: ordinary law suffices (Art 312 says so expressly).

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · □ CA hooks

GS-II Indian Polity

NEWS TRIGGER

□ **Lateral entry** into the bureaucracy (joint secretary/director level via UPSC) — the **2024 advertisement was withdrawn** after a reservation-in-lateral-entry row. □ **All-India Judicial Service (AIJS)** revival debate — Centre keen; many states/HCs resist (federalism, language).

INTRO & ORIGIN

□ **Mission Karmayogi (2020)** & the **Capacity Building Commission** — competency-based civil-services reform.

Advanced learning layer: concepts → constitutional detail → UPSC application.

□ CA HOOKS: RECALL MAP

□ CA hooks

V

Dimension 1 □ Mission Karmayogi (2020) & the Capacity Building Commission — competency-based civil-services reform.	**Dimension 2** □ □□ Civil Services Board / fixed tenure — SC in T.S.R. Subramanian (2013) directed minimum assured
Dimension 3 tenure & recording of oral instructions to curb politicised transfers.	

STATIC THEORY

- □ □□ **Civil Services Board / fixed tenure** — SC in **T.S.R. Subramanian (2013)** directed minimum assured

- tenure & recording of oral instructions to curb politicised transfers.

MAINS ANGLE

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The steel frame needs re-tempering." Discuss civil-services reforms (lateral entry, Mission Karmayogi, fixed tenure). All-India Judicial Service: a remedy for judicial vacancies or a threat to federalism? Doctrine of pleasure vs Article 311 — balancing administrative discipline with security of tenure.

STUDY LINK

Public Services / All-India Services (Articles 308–314) — ADVANCED / COMPLETE → Mains angles

End of Register Notes - UPSC Agent / Copilot CLI